

		'Where an attorney successively represents clients with adverse interests, and where the subjects of the two representations are substantially related, the need to protect the first client's confidential information requires that the attorney be disqualified from the second representation. For the same reason, a presumption that an attorney has access to privileged and confidential matters relevant to a subsequent representation extends the attorney's disqualification vicariously to the attorney's entire firm.' [¶] The issue of successive representation of a former and a current client is not relevant, however, unless there is a former attorney-client relationship." (<i>Lynn v. George</i> (2017) 15 Cal.App.5th 630, 637.) "The party seeking disqualification has the burden to establish the attorney-client relationship." (Id. at p. 638.) Norred has failed to show the subject of Mark Norred & Drake Traffic Control Services, Inc. v. Samuel Mullen ("Mullen case") and the instant action are substantially related. Specifically, Norred has failed to show the Mullen case had anything to do with Norred's accounting business or that Plummer obtained any confidential information relevant to this case from representing Norred in the Mullen case. Norred has also failed to show that Plummer obtained privileged and/or confidential matters relevant to representation in this case from any of the other 5 cases Norred contends Plummer represented him. Accordingly, the motion to disqualify is DENIED. Moving party to give notice.
9	United Casualty & Surety Insurance Co. v. Rodeo Auto, Inc. 2025-01477225 Motion for Discharge, Award of Costs and Attorney Fees for Deposit and Dismissal of Plaintiff	Plaintiff executed a Motor Vehicle Dealer Bond, Bond No. UCSX900X2150, for defendant Rodeo Auto, Inc. dba Rexera Auto Group ("Rodeo") as principal in the sum of \$50,000.00 ("Bond") pursuant to California Vehicle Code sections 11710 and 11711. Plaintiff contends Defendants have made adverse and conflicting demands upon it regarding the Bond. As a result of these claims against the bond, and since Plaintiff is uncertain as to how much to pay to each claimant or to claimants in the future who may make demand upon its bond, on April 22, 2025, Plaintiff filed a verified complaint for interpleader. Interpleader is a procedure whereby a person holding money or personal property to which conflicting claims are being made by others, can join the adverse claimants and force them to litigate their claims among themselves. (<i>City of Morgan Hill v. Brown</i> (1999) 71 Cal.App.4th 1114, 1122.) Once the stakeholder's right to interplead is established, and he or she deposits the money or personal property in court,

	he or she may be discharged from liability to any of the claimants. This enables the stakeholder to avoid multiplicity of actions and the risk of inconsistent results if each of the claimants were to sue him or her separately. (<i>Cantu v. Resolution Trust Corp.</i> (1992) 4 Cal.App.4th 857, 874.) "The true test of suitability for interpleader is the stakeholder's disavowal of interest in the property sought to be interpleaded, coupled with the perceived ability of the court to resolve the entire controversy as to entitlement to the property without need for the stakeholder to be a party to the suit." (<i>Pacific Loan Mgmt. Corp. v. Sup.Ct.</i> (Armstrong) (1987) 196 Cal.App.3d 1485, 1489-1490.) Code Civ. Proc. § 386, subdivision (b) provides as follows: Any person, firm, corporation, association, or other entity against whom double or multiple claims are made, or may be made, by two or more persons which are such that they may give rise to double or multiple liability, may bring an action against the claimants to compel them to interplead and litigate their several claims. The action of interpleader may be maintained although the claims have not a common origin, are not identical but are averse to and independent of one another, or the claims are unliquidated and no liability on the part of the party bringing the action or filing the cross-complaint has arisen. Code Civ. Proc. § 386.5 provides: Where the only relief sought against one of the defendants is the payment of a stated amount of money alleged to be wrongfully withheld, such defendant may, upon affidavit that he is a mere stakeholder with no interest in the amount or any portion thereof and that conflicting demands have been made upon him for the amount by parties to the action, upon notice to such parties, apply to the court for an order discharging him from liability and dismissing him from the action on his depositing with the clerk of the court the amount in dispute and the court may, in its discretion, make such order. Here, Plaintiff has established that the Bond is in dispute, is subject to multiple claims that may give rise to multiple liability, and that future claims may arise. Importantly, Plaintiff declares that it is merely a stakeholder with no interest in the Bond's \$50,000 disputed amount or any portion thereof. Thus, Plaintiff has the right to interplead the funds with the court. Plaintiff seeks an award of Plaintiff only seeks \$10,000 for attorney fees and costs to be deducted from the Bond. Defendant Stephanie Sigala ("Defendant") filed an opposition only as to Plaintiff's request for an award of attorney fees and costs. Defendant argues the request should be denied
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		because there are several claims that greatly exceed the amount of the Bond, which means the claimants will only get a pro-rata portion of their damages. According to Defendant, it is not fair that Plaintiff should get fees and costs while the consumers, who the law was designed to protect, do not. Defendant alternatively argues Plaintiff's fees and costs should be reduced to no more than \$3,500. "In ordering the discharge of such party, the court may, in its discretion, award such party his costs and reasonable attorney fees from the amount in dispute which has been deposited with the court." (Code Civ. Proc., § 386.6, subd. (a).) The amount of attorney fees and costs must be restricted to those incurred as to the interpleader remedy. (<i>Sweeney v. McClaran</i> (1976) 58 Cal.App.3d 824, 830-831.) An award of fees and costs out of the penal sum of the bond are permissible even though such an award seriously depletes the amount of the bond. (<i>Sweeney, supra</i>, 58 Cal.App.3d at pp. 828-830.) Thus, Plaintiff is entitled to recover its fees and costs deducted from the Bond. Plaintiff's billing records establish it incurred \$14,018.01 in fees and costs. This amount represents 71.9 hours at hourly rates ranging from \$275 - \$325. The billing shows that the tasks are related to the interpleader remedy. The court finds the hours incurred and the hourly rates are reasonable. Plaintiff has not submitted any evidence contesting the reasonableness of the hourly rates and hours incurred. Although Plaintiff reasonably incurred \$14,018.01, Plaintiff only seeks \$10,000 in fees and costs. Accordingly, the Court GRANTS the Motion and ORDERS as follows: 1. The Court awards Plaintiff \$10,000, to be deducted from the \$50,000 bond amount per Code Civ. Proc. § 386.6. 2. Plaintiff is to deposit \$40,000 with the court. 3. All parties to this action, and each of them, and their respective attorneys, are restrained from instituting or further prosecuting any other proceeding in any other court in the State of California, or other jurisdiction, affecting the rights and obligations between the parties to this interpleader based upon the Motor Vehicle Dealer Bond, Bond No. UCSX900X2150, for defendant Rodeo Auto, Inc. dba Rexera Auto Group. 4. The Court finds Plaintiff is a disinterested stakeholder and shall be discharged from liability and dismissed with prejudice from this case. The previously set trial date remains. Plaintiff to give notice.
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12	Bennett v. General Motors, LLC 2023-01366979 Motion for Summary Judgment and or Adjudication CMC	Defendant General Motors LLC's Motion for Summary Judgment, or in the alternative, Summary Adjudication, is GRANTED in part and DENIED in part. Separate statement defects While Defendant seeks summary adjudication in the alternative, Defendant's separate statement does not comply with California Rules of Court, rule 3.1350, subdivision (h) as it does not set forth individual issue statements as to each cause of action. Plaintiff's separate statement is also defective as it does not comply with the formatting rules pursuant to California Rules of Court, rule 3.1350, subdivisions (f) and (h), including the two-column format. The Court puts counsel on notice all future filings must comply with these rules. Plaintiff's objections to evidence Plaintiff's objections to evidence are OVERRULED. First cause of action for breach of express warranty Commercial Code section 2313, subdivision (1) provides in part: "Express warranties by the seller are created as follows: (a) Any affirmation of fact or promise made by the seller to the buyer which relates to the goods and becomes part of the basis of the bargain creates an express warranty that the goods shall conform to the affirmation or promise. (b) Any description of the goods which is made part of the basis of the bargain creates an express warranty that the good shall conform to the description. . . . (2) It is not necessary to the creation of an express warranty that the seller use formal words such as 'warranty' or 'guarantee' or that he have a specific intention to make a warranty" "To prevail on a breach of express warranty claim, the plaintiff must prove (1) the seller's statements constitute an affirmation of fact or promise or a description of the goods; (2) the statement was part of the basis of the bargain; and (3) the warranty was breached." (<i>Weinstat v. Dentsply Internat. Inc.</i> (2010) 180 Cal.App.4th 1213, 1228.) GM contends Plaintiff's first cause of action for breach of express warranty fails because Plaintiff purchased the vehicle from a third-party dealership. In doing so, GM relies on <i>Ballesteros v. Ford Motor Co.</i> (2025) 109 Cal.App.5th 1196, 1216-1217, which states, "[t]he California Uniform Commercial Code's express warranty provisions are limited to warranties given by the seller directly to the buyer." "It is true that older California cases have held that 'privity of contract is required in an action for breach of either express or implied warranty and that there is no privity
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